

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The Provost Marshal's Office (PMO) requires online subscription access to the Leads Online Investigation System Database. This service allows PMO Criminal Investigation Division (CID) criminal investigators to access public records, social media open source information and crime analytics through a web-based application. This service is mission critical to PMO and contributes the timely investigative support to tenant commands aboard the installation.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. X *ONLY ONE RESPONSIBLE SOURCE* *(select all that apply)*:

1. X RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

Leads Online System is designed specifically for criminal investigations using transaction data from pawnshops, scrap yards, eBay, OfferUp, gold buyers and other secondhand stores and is the sole proprietary of Leads Online and is protected under United States Copyright Act. This service links public records collection data in a cross-jurisdictional information exchange that provides criminal investigators with comprehensive information only derived specifically through Leads Online.

2. X EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

Leads Online is the only operating system with transaction data access which allows criminal investigators to retrieve pertinent cross-jurisdictional information. This capability ultimately leads to more thorough and accurate investigations which enhances criminal investigative support to tenant commands aboard the installation.

3. ____ OTHER REASONS.

B. ____ *BRAND NAME*

Item required must be a brand name, product, or feature of a product, particular to one manufacturer. .

C. ____ *URGENT AND COMPELLING*. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

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.C.1244174899 Marcos C. Vega / 910-450-5626 03/12/2026

Signature

Name (Printed) / Phone #

Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature

Name (Printed) / Phone #

Date